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Ignorance of law has no excuse - why such ^{hypothetic} take assumption

→ This is a foundational legal philosophy question.

⇒ Admire the question

→ The question touches on the balance b/w individual fairness & systemic functionality.

⇒ Justifying the admiration.

→ Human Limitation Vs. Necessity of doctrine

↓

↓ Find Conflict

No. of Suffering from ignorance is less as compared to

Doctrine serve greater social good.

Bentham
(Maximum happiness for maximum no. of people is ensured through such hypothetical assumption.)
Pain < Pleasure

→ So legal system pretends ~~se.~~ that everyone knows all the laws.

& Pragmatic

→ Not Realist fact but Necessary legal fiction

→ this is crucial for system to function.

Rationale.

→ Impossibility

→ If Ignorance were a valid defense, it would be nearly impossible for a prosecutor to disprove such a claim.

→ the doctrine prevents the legal system from collapsing.
→ it ^{imposes} burden of knowledge on the citizen & burden of proof on the ~~defendant~~ prosecutor. (beyond reasonable doubt)

→ The principle assumes the law is publicly accessible & knowable. Laws are published in statutes, legal codes & court reports.

→ opportunity to know the law exists even if the average person doesn't take advantage of it.

→ This rule is applied uniformly without considering the subjective knowledge of each individual. Everyone is held to the same objective standard.

Crucial Exceptions are there

1. If law requires the mental state "knowingly", it such case ignorance can be a defense.

2. Lambert Principle → If a person reasonably relies on official interpretation

3. Mala prohibita crimes.

Mala in se: Acts that are inherently wrong. Ex. Murder, Theft. No one can reasonably claim, they didn't know murder was illegal.

→ Mala prohibita: Acts that are wrong only because they are prohibited by a statute.

Ex: Begging

- मोहना को

- specific business regulation

→ These Mala prohibita offenses, can be a defense.

4. Vagueness:

Law is so vague that a person of ordinary intelligence cannot reasonably understand what conduct is prohibited.

The principle of ignorance is no excuse only applies to laws that are sufficiently clear.

Conclusion: The doctrine exists because the alternative allowing everyone to plead ignorance - would be far worse for the ROA than punishing everyone who knows the law.

Benefit of Doubt goes to Accused - why?

→ protective right designed to ensure justice & prevent tyranny.

→ accused doesn't have to prove their innocence, state must prove their guilt beyond a reasonable doubt.

→ This balances the extreme power imbalance betw the individual & the state.

→ सोना है
→ प्रहरी है
→ कानून है
→ गरीब है
→ people's mandate है

→ Fundamental Value Judgement:-

⇒ It is better to let the guilty go free than to punish the innocent.

↳ Blackstone Ratio:

⇓

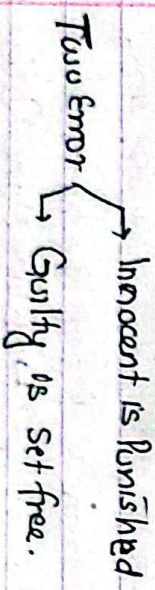
It is better that ten guilty person escape than one innocent suffer.

weighing of two costs:

1. The Cost of a false conviction is unacceptably high:
Punishing an innocent person is a catastrophic failure of the justice system.
It constitutes a profound injustice against the individual & erodes public trust in the system itself.

2- The Cost of an acquittal is lower:

- The guilty person may be caught & convicted for another crime in the future, but the injustice done to a punished innocent person can never be fully undone.



Cost of Innocent is Punished" > "Cost of Guilty is set free"

The Fallibility of Evidence & the Judicial Process:

- The legal process is human & therefore imperfect.
 - ↳ Evidence can be circumstantial
 - ↳ witness can be mistaken or dishonest.
 - ↳ forensic science is not infallible.
- "Reasonable Doubt" standard is a crucial safeguard against these inherent weaknesses.

Q.18

The Seriousness of a Criminal Conviction:

A criminal conviction carries severe consequences

- loss of liberty
- loss of reputation
- loss of life.

The "benefit of doubt" ensures that this severe state power is not exercised lightly or based on flimsy evidence.

Two error / Innocent s.

Conclusion:-

Protecting Individual from Irreversible Harm.

© Rationality behind divorce legislation.

Core Rationality:

The well-being of individuals & the stability of society are better served by allowing the dissolution of a failed marriage than by forcing its indefinite continuation.

Other:

1. Individual Liberty & Autonomy:

→ Freedom from Harmful Contract.

↳ law should provide an escape if marriage becomes a source of misery, abuse or profound unhappiness.
↳ Forcing people to remain in a destructive relationship is seen as a form of state-sanctioned imprisonment.

→ Right to Self-Determination.

↳ Individuals have right to pursue their own happiness & personal fulfillment.
expressly allow divorce in such grounds

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2. Promotion of well-being & prevention of harm:

3. Minimization of chaos through legal process. (Realistic)

4. Sanctity of Marriage is Redefined

→ The modern view is that the "sanctity" or value of marriage is not in its mere permanence, but in the quality of the relationship.

↳ This ensures that the marriage that do exist are (theoretically) based on mutual affection & respect, not legal entrapment.

Conclusion:

Marriage should not be a life sentence to misery.

③ Post-Tenure Code of Conduct for Judges:

→ code of conduct during the tenure → enforceable discipline

→ post-tenure code of conduct

→ matter of personal integrity & reputation

- Collective Judicial Reputation suffers from individual misconduct.

- Judges should obey the code of Conduct even after their tenure has ended, but the nature of this obligation changes & become largely a matter of personal integrity & reputation rather than enforceable discipline.

- Once a judge leaves the bench - whether by retirement, resignation, or ~~resignation~~ ouster - they their obligation to uphold the principle of the code does not vanish for several reasons:

1. Preservation of Judiciary's Reputation & Public Trust:

→ A public may not distinguish betn a "current" & "former" judge.

2. The Lingering Duty of Confidentiality:

→ Confidential Court Documents doesn't become public property once a judge retires

3. Avoiding the appearance of wrongdoing:

→ For Ex: If a recently retire judge immediately takes a high-paying job, it creates a perception that their past judicial decisions might have been influenced by the prospect of future employment.
(सम्म निरीय दिइएको विषयमा न्यायाद्वारा जारी गरिएको निर्णय देखिएपछि हुन्छ। त्यसले नै देखिने सम्झना।)

4. Ongoing Professional Consequence:

→ Judicial Commission may no longer have jurisdiction, but other prof. bodies do (eg: Bar Council)
↳ since a retire judge can practice as a lawyer.

5. Personal & Historical Legacy:

→ A Judge's legacy is defined by their

life long commitment to justice.

A judge who spends a career building a reputation for integrity can quickly destroy it with one act of post-tenure misconduct.

Practical Scenario

- Becoming a Lawyer Again
- Writing a Book/Memoir
- Commenting on Pending Case

cooling-off period
पहिलि गर्नु पर्ने हुन्छ।

Conclusion

→ The title "Judge" is lifelong in perception, even if the office is not.

→ The health of the judicial system depends on the enduring integrity of all its members, past & present.

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Plea Bargaining

- The complex Negotiation System driven by:

- ⇒ the need of court (efficiency)
- ⇒ the need of prosecution (certainty of conviction)
- ⇒ the need of defender (mitigation of punishment)

- Types of Bail Plea Bargaining based upon what is being negotiated:

1. Fact Bargaining - not introducing more damaging facts
2. ~~Bail Bargaining~~
3. Charge Bargaining - less serious charge
4. Sentence Bargaining - lighter sentencing

→ Plea Bargaining aims/affects how the case ends. It is about case resolution. Bail Bargaining has not yet received wide recognition as a form of Plea Bargaining.

• Plea = request

Insolvency (654-66)

~~Art 51(1)~~

• Section 51(1)

A person who is going to be insolvent himself or, if the debt is public, creditors holding at least 25% or more of the debt claims or, if the debt is not public, creditors having debt claims of more than 5 lakh rupees may file an application in the court for the commencement of insolvency-related proceedings

Scenario 1: Petition by the Debtor themselves (ऋणी)

who can file: The insolvent person (the debtor)
Condition: They must believe their total liabilities exceed their total assets.

Example:

Raj owns a small shop. Due to losses his asset are worth Rs 8,00,000.

Q86

Total debts: = Rs 15,00,000.

Loan from Bank A
Credit from Suppliers B
Personal loan from friend C.

Here, Liabilities > Assets.

Seeing no way to pay his debts
Ray himself can go to the court &
file a petition to declare himself
insolvent under Insolvency (बंकाप्राप्ति)

Scenario 2: Petition by Creditors (When Debt is Public)

Who can file: A single creditor or group of
creditors who together
hold at least 25% of the
total ~~debt~~ public debt.

Condition: The debt must be "public,"
meaning it is known to or
can be known by multiple
parties, like publicly issued

bonds or widely known credits.

Example:

"ABC Suppliers Pvt. Ltd." is a company
that is publicly known to be in
trouble. It has issued public bonds
worth Rs 1,00,00,000 to 100 different
bondholders.

The total public debt = Rs 1 crore.

Mr. Gaurang holds bonds worth Rs 10 lakhs
& Mr. Shrestha holds bond Rs 15 lakhs.
Together, they hold Rs 25 lakhs which
is 25% of the total public debt (1 crore).

Mr. Gaurang & Mr. Shrestha can jointly
file a petition in the court to declare
ABC Suppliers insolvent.

Scenario 3: Petition by Creditors (When the Debt is Nil)

Who can file: A single creditor or a group of creditors who together have loaned more than 5 lakhs to the debtor.

Condition: The debts are private such as bank loans or personal loans from individuals.

Example:

Sita is an individual who has taken put. Loans from several people:

1. Loan from Bank - Rs 3 lakhs.
2. Loan from Uncle Y - Rs 2 lakhs
3. Loan from friend Z - Rs 1.5 lakhs.

Her debts are not public, they are private agreements.

Bank alone cannot file because its loan is less than 5 lakhs.

However, If Bank X & Uncle Y join together, their combined claim is Rs 5 lakhs & now exceeds Rs 5 lakhs threshold.

Therefore, Bank X & Uncle Y can together file a petition to declare Sita insolvent.

Summary Table.

Petitioner	Condition	Example
Debtor themselves	Liabilities > Assets	Raj: with Asset 8 lakhs & debt 15 lakhs.
Creditors - Public Debt	Hold $\geq 25\%$ of total public debt	Two more bondholders holding 25% of a company's public bond file together.
Creditors - Non-Public Debt	Holder Claims > 5 lakhs	A bank & a relative with combined loan of 5 lakhs file against an individual.

Q90 Why procedural sections are included within the substantive civil code?

→ Ex: Insolvency
Adoption
Marriage by Registration
Guardianship

Answer 1. Hybrid System (Substantive + Special Procedural)

This hybrid approach balances general rules with context-specific needs.

2. Legislature aims to create one-stop shop for certain specialized area of law. (This is deliberate & strategic)

This ensures clarity, coherence & ease of application for complex subjects.

3. MPC provides the default general rules for most civil cases. However, some substantive rights requires tailored, unique procedures that deviate from the general rules.

3. If the procedural details were left entirely to the general procedure code, the specific intent behind a new substantive right might be diluted or misinterpreted by the courts.

By spelling out the procedure, the legislative leaves no room of doubt.

Example

The specific 12-year period for discharge in insolvency (Sec. 65) & the priority of payments (Sec. 61) are core policy decisions.

Placing them directly in the civil code elevates their importance & ensures they are applied as intended, rather than being subject to a judge's discretion under a more general procedural statute.

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4. Enhancing Accessibility & User-friendliness

- for lawyers.
- for judges
- for citizen.

no need of cross-referencing two codes
easy to understand
a specific area of law

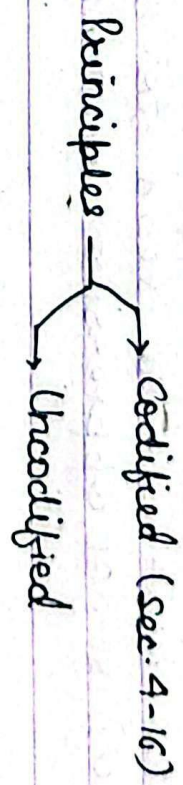
⇒ it has immense practicality (pragmatic)

Conclusion:

The inclusion of procedural part within MCI is not an error or an overlap but a sophisticated legislative choice.

MCI PC → default procedural rulebook
→ governs areas where the Civil Code is silent on procedure

Principle of Civil Law



— laws have intentional silences filled by judges & jurists.

The (unmodified) principles are often considered as the "spirit of the law".

Other

- Principle of Good faith

This requires parties to act honestly, fairly & with loyalty in their relationship, not just complying with the letter of the law

- Principle of Equity:

This is corrective to the rigidity of law. This allows court

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to decide based on fairness & NJ when the strict application of the law could lead to an unjust or oppressive outcome.

- Principle of Estoppel:

A party cannot contradict their own previous behavior if another party has relied on that behavior to their detriment. (harm/damage)

- Principle of Favor Negotii:

When a legal act (like a contract) is capable of multiple interpretations, the interpretation that validates the act & gives it effect should be preferred over one that renders it void.

- Principle of Proportionality:

Any restriction on a right must be proportionate to the goal.

It seeks to achieve.

For example: a penalty clause

in a contract should not be grossly excessive compared to the actual loss.

- Principle of Unjust Enrichment:

One should not be allowed to profit at another's expense without a legal justification.

(In Nepal, it is in MoC, 2073)

- Principle of Social Solidarity

- The law should be interpreted in a way that keeps in mind the collective good & social responsibility.

- Principle of Weaker Party Protection.

- Principle of A2J.

- Principle of Contra Proferentem:

The Latin term for "against the offeror" or more broadly "against the party who drafted the clause":

The rationale is based on fairness & power dynamics:

1. The Drafter Had the Power & Expertise:
The person or entity that wrote the contract had the opportunity, resource & legal advice to write it clearly & to protect their interests.

2. The Adhesive Party Had Little Choice:
The other party has no ability to negotiate the terms; it's a "take it or leave it" situation.

3. Incentive for clarity:
This principle encourages drafter to write clear, unambiguous

contracts. If they are slippery or intentionally vague to create loopholes for themselves, they will bear the consequences.

Example

If a term in a contract, insurance policy, or any standardized document is ambiguous or unclear, the ambiguity will be interpreted against the party who wrote it & in favor of the party who merely accepted it.

Why are Principles codified in codes?

1. A code is not just a rulebook, it is a value system.

The principle acts as the code's moral & ethical compass.

Principle help judge to arrive at a fair outcome in complex/bodily cases.

2. No legislature, no matter how wise, cannot foresee every possible situation that might arise in the future.

The principle acts as a built in "safety net" for the legal system ~~when~~ new

When a new case emerges for which there is no specific rule, the court is not powerless. It can apply a general principle to resolve the dispute.

For ex:

A new type of cyber-fraud emerges that isn't explicitly described in the criminal or civil code.

A court could use the principle that "No one shall cause harm to another" as a legal basis for holding the fraudster liable & compensating the victim.

3. To ensure consistency & unity.

- The principles ensures that the entire system operates in a coherent & unified manner.

- The rule of contract, property & family law are all different but they are all underpinned by principle like good faith, ~~tempted~~ non discrimination & prohibition of causing harm.

This ensures that regardless the legal area, the law serves for the same fundamental goals of justice & fairness.

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4. To control & guide judicial discretion
(Legitimizing function)

5. To Educate & Declare Foundational Values
(The Declaratory function)

Why Code It? vs "Why Not Leave it Unsaid?"

→ The legislature want to ensure
they are always applied &
are visible to all.

Conclusion:

Codifying Principle Transforms
them from abstract philosophical ideas
into active, operational tools of the
legal system. They are DNA of the code
they contain the essential
information that guides the growth,
development & daily functioning
of the entire legal body, ensuring
it remains a coherent, just & living
instrument.

Is Binary classification between natural
& legal person ~~is~~ often insufficient?
~~for the~~ is

Ans

No, the binary classification bet'n natural
& legal person is often insufficient
for the complexities of modern law.

This binary classification is
over simplified. Rigid adherence
to this binary can create analytical
gaps, practical injustices & regulatory
challenges.

1. Unincorporated Associations:

→ Ex: Clubs, community groups,
trade unions, etc. Before
formal registration, political
action committees or a simple
partnership.

→ Not a single natural person,
nor are they a formally
incorporated legal person.
→ Gray Zone. Can it sue or be sued?

2. The Rise of Non-Human, Non-Corporate Entities (The Digital Person).

- Saudi Arabia provided citizenship to ~~AI~~ (Sophia) humanoid Robot
- AI minister in Albania.

An AI can create patentable invention.
It also can cause an accident
(eg: self-driving car).

These electronic personality do not fit in these traditional binary classification.

There is necessity of new category.

3. The Challenge of Hybrid Entities:

- The Sole Proprietorship
- collective Natural Person - Indigenous Communities & Tribes.
- shell company - with no assets and no real operation.

Conclusion:

The binary classification is necessary but not sufficient. So, the best model will be spectrum model or a set of functional categories based on attributes.

The law must adapt its categories to fit the complex world.

504 Plagiarism Issue in Law?

→ Borrowing legal provisions from other countries is not considered "plagiarism".

⇒ no ~~the~~ such standard practice
⇒ Different purpose: Law vs Academia

←
focus on utility & effectiveness of a legal rule, not its originality.

⇒ sovereignty & legitimacy

⇒ law derives its authority & legitimacy from the sovereignty & powers of the enacting state.

⇒ legal transplantation & legal borrowing & adaptation & ~~the~~ is a standard, accepted & often encouraged practice.

⇒ Rarely, a law is copied exactly. It involves selective borrowing & adaptation to local social, economic & political conditions.

⇒ legislation is often a "meeting of" of ideas from case laws, international model law, academic writings, & the laws of multiple countries.
providing citation for every influenced idea would be practically impossible.

⇒ Credit is given informally:

- in preamble
- in legislative debate in parliament
- expert committees & reports.

Conclusion:

The label legal transplantation as "plagiarism" is to misunderstand the fundamental nature of law-making. Legislative act in the business of problem solving; not authorship.